Guidelines for Use of Generative AI

Agency of Digital Services — Division of Artificial Intelligence

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Purpose and Scope

Pursuant to 3 V.S.A. § 5022, the Division of Artificial Intelligence (AI) has reviewed the capabilities of currently-available generative AI tools, including large language models (LLMs) such as ChatGPT, Gemini, Copilot, and LLaMA, as well as other AI-powered modalities such as meeting assistants, transcription tools, and AI features embedded within third-party applications. The Division is issuing the following guidance for State employees who wish to use these tools in the performance of their official duties.

Use of generative AI tools for official duties is acceptable subject to the limitations described below. ADS will update these guidelines as technologies evolve, and Departments or Agencies may issue more restrictive guidelines at their discretion.

Key Definitions and Tool Categories

For the purposes of these guidelines, the following categories of tools are distinguished:

Public AI Tools: Externally hosted, publicly available AI tools and services, including consumer-facing LLM chatbots (e.g., ChatGPT, Gemini), AI meeting assistants hosted by third-party vendors (e.g., Fireflies.ai), and AI features embedded in third-party applications where data is processed on external servers. Non-public information may not be entered into or processed by public AI tools.

Internal AI Tools: Secure AI tools hosted on the State's internal network and limited to access by SoV employees only, such as ChatVT. These tools are pre-approved for general employee use and may be used with most types of sensitive or confidential State data, except for Federal Tax Information (FTI), MARS-E regulated data, and Criminal Justice Information Services (CJIS) data.

Capabilities

Generative AI tools offer assistance across a broad range of modalities, including:

- Text generation and editing: drafting correspondence, policy documents, summaries, and code
- Visual content generation: creating images and graphics
- Meeting assistance: real-time transcription, summarization, and action item extraction during calls and meetings
- Embedded AI features: AI-powered tools built into productivity applications (e.g., grammar and drafting assistants, AI search, automated workflows)

These tools can be powerful in a document and correspondence-heavy organization. Generative AI shifts the content generation process to focus on developing ideas and refining outputs rather than the mechanics of writing or transcription. This can result in better quality content with lower overall effort.

Usage Guidelines

The following guidelines apply to all generative AI tools used for official State business. Additional considerations specific to certain tool categories are addressed in subsequent sections.

1. **Compliance with Policy:** Employees must use generative AI tools in accordance with State Personnel Policy 11.7, the AI Code of Ethics, and these guidelines.

2. **Supervisory Approval:** Employees must obtain supervisory approval before using any AI tool for official State business. Supervisors may consult with the Director of AI or their ADS IT Lead when evaluating whether a particular use is acceptable.

3. **Restrictions on Non-Public Information in Public AI Tools:** Employees may not input or transmit non-public information into or through public AI tools. All information submitted to a public AI tool should be treated as potentially public. This restriction applies regardless of the modality — whether a chatbot, a meeting assistant, or an embedded application feature. The following is a non-exhaustive list of information that may not be used with public AI tools:
    - Confidential or privileged information or communications
    - Personally identifying information (PII)
    - Protected health information (PHI)
    - Code containing passwords or secrets
    - Information that has the potential to erode trust in Vermont's institutions

Note on ChatVT: *As an internal tool, ChatVT is pre-approved for use with most sensitive and confidential State data. The above data restrictions do not apply to ChatVT, except that FTI, MARS-E regulated data, and CJIS data* ***may not*** *be processed in ChatVT.*

4. **Free Tools Only (Public AI):** With the above restrictions, this policy enables employees to use publicly available AI tools offered free of charge. Employees may not individually pay for AI services or sign up for services requiring payment using State resources. Any procurement of AI products must go through the mandated State procurement processes. Specific public generative AI tools may be conditionally approved for use by the Director of Artificial Intelligence if those tools are purchased under an ADS-held contract that meets required data and security criteria.

5. **Accuracy and Verification:** Employees must ensure the accuracy of all content produced with AI assistance. Generative AI may produce content that is incorrect, outdated, or fictitious, and such errors may not be readily apparent. All AI-generated content must be reviewed for accuracy, veracity, and completeness, as with any other source of information.

6. **Employee Responsibility:** Employees using AI tools remain responsible for their work product regardless of what portion was produced by AI. AI tools have demonstrated biases which can negatively impact groups or individuals. All content must be reviewed for accuracy, completeness, and alignment with Vermont's values.

7. **Use of State Accounts:** When using a public AI tool that requires account registration, employees must register and log in using their State email address only. Official

business may not be conducted using an account established with a personal email address.

8. **Reputational Risk:** Employees must not use AI tools in any way that could cause reputational harm to the State if it were known.

9. **Supplemental, Not Relied Upon:** While it is acceptable to use AI tools to assist with official job duties, employees should not develop reliance on them — particularly free public tools, which may have unforeseen downtime, pricing changes, or discontinuation. Treat AI assistance as an optional enhancement. If there is an opportunity to make generative AI a part of a standard work process, ADS and the AI Director will assist with procuring and implementing a robust, institutionally supported solution.

10. **Intellectual Property:** Employees may not use AI tools in any way that infringes on the intellectual property rights of others.

AI Meeting Assistants and Transcription Tools

Third-party AI meeting assistants — including tools that transcribe, summarize, or extract action items from calls and meetings — present privacy and security considerations, especially when external participants are present.

Employee Authority

State employees are authorized to prohibit or require the removal of third-party AI meeting tools during any call or meeting that may involve sensitive or non-public information. Employees may exercise this authority:

- Before a meeting begins, as a condition of participation
- During a meeting, at any time, without requiring additional approval
- Regardless of whether the meeting is internal or includes external parties

Responsibilities

Employees and meeting organizers using or enabling AI meeting tools must ensure that:

- Any third-party meeting assistant is appropriate for the sensitivity of content to be discussed, consistent with Section 3 above
- External participants are informed of the State's policy on AI tool usage before or at the start of the meeting
- Existing procedures for maintaining official records of meetings are followed where applicable (e.g., standard protocols for recording and publishing public meetings)
- Transcripts, summaries, or other AI-generated meeting records are treated as official records subject to applicable retention and disclosure requirements

Key Risks

Employees should be aware of the following risks when considering whether to permit AI meeting tools:

- **Data Exposure**: Audio and text data may be transmitted to external servers for processing, creating potential exposure of sensitive information outside SoV-controlled environments.
- **Unverified Control**: Employees often lack direct administrative control or visibility into whether these tools have stopped recording or processing data.

- **Retention and Secondary Use**: Vendors may retain transcripts or audio data for extended periods and use them for purposes such as model training, increasing risk of unauthorized disclosure.
- **Compliance Risks**: Use of external AI tools may conflict with state privacy laws, contractual obligations, or public records requirements.

Note on Accessibility Use Cases: *AI tools may be used for transcription, translation, and captioning in support of accessibility needs (e.g., providing captions for public meetings, translating materials for limited-English-proficient audiences). These uses are generally acceptable, but require human review and citation prior to distribution. Where resources allow, human-generated transcription, translation, or captioning is preferable.*

AI Features Embedded in Third-Party Applications

Many productivity and business applications now include embedded AI features, such as AI-assisted drafting, smart summarization, automated classification, or AI-powered search. The same overarching principle applies: employees are responsible for ensuring that any AI feature they enable or use processes non-public data only through approved, secure channels.

Before enabling an embedded AI feature in a third-party application, employees should confirm:

- Whether the feature transmits data to external servers
- Whether the data to be processed is appropriate for that tool under Section 3 of these guidelines
- That supervisory approval has been obtained

Employees uncertain about the data handling practices of an embedded AI feature should consult with their ADS IT Lead or the Director of Artificial Intelligence.

Acceptable Use and Citation Requirements

To maintain public trust and meet the transparency requirements of the AI Code of Ethics, employees must appropriately disclose the use of AI-generated content where indicated below. These requirements apply regardless of the AI modality used (chatbot, meeting assistant, embedded tool, etc.).

If there are questions about where a particular use case falls, supervisors and employees may consult with their IT Lead or the Director of AI.

Standard Citation Format

> *This content was [drafted / edited / translated / summarized] with the assistance of a generative artificial intelligence tool [name tool]. The content has been reviewed and verified to be accurate and complete, and represents the intent of [office / department / the State / person's name].*

Emergency Translation Citation Format

> *This content was translated with the assistance of a generative artificial intelligence [Google Translate / Azure AI]. The content has NOT YET been reviewed and verified but will be as soon as possible. This notice will be updated once the review is complete. For any questions about this content or to report confusing or conflicting text, please contact [office-email@vermont.gov].*

Acceptable Use Matrix

The following matrix indicates when citation is required based on the type of content and the extent of AI involvement. As a practical guide, consider the following question: "*If I were drafting this product with a human, at what point would I need to give them credit?*"

Column headers reflect increasing levels of AI involvement:

Proofreading	AI reviewed for grammar, spelling, or clarity only; content and substance are entirely human-generated.
Brainstorming	AI assisted with generating ideas or an initial draft, but the employee is the primary author.
Collaborating	AI directly introduced facts, information, or substantive content into the work product.
Human Editing	AI produced a substantial draft that the employee then reviewed, edited, and verified.
100% AI	Content was generated entirely by AI with no substantive human drafting contribution.

Breadth of Distribution	Proofreading	Brainstorming	Collaborating	Human Editing	100% AI
Press release, prepared remarks	✓	✓	Cite	✗	✗
Replies to public inquiry	✓	✓	Cite	✗	✗
Public-facing web content	✓	✓	Cite	Cite	✗
Memos, broad internal communications	✓	✓	Cite	Cite	✗
Internal process docs	✓	✓	✓	Cite	✗
Source code	✓	✓	✓	Cite	✗
Emails	✓	✓	✓	Cite	Cite
Chat	✓	✓	✓	Cite	Cite

✓	No citation needed; supervisor approval required	**Cite**	Citation required; supervisor approval required
✗	Use is not acceptable		

***Note on AI-Generated Images**: AI-generated images in public-facing documents, websites, and materials should be avoided unless there is no viable alternative (stock imagery, etc.). Any AI-generated imagery must be cited, regardless of content type or level of AI involvement.*